

Hem Singh v. State of U.P.

Allahabad High Court · Division Bench · 6 December 2018 · WRIT - C No. - 40029 of 2018 · **Writ disposed; cl. 6.14 installments granted; recovery stayed on payment**

HEADNOTE

A consumer who did not contest electricity dues on merits, but sought time to pay, obtained a clause 6.14 installment schedule: part-deposit within one month, four later installments of the balance, recovery stayed while payments were kept, and automatic vacation of stay on default.

FACTUAL SUMMARY

Hem Singh approached the Allahabad High Court against a recovery certificate dated 2 August 2018 seeking to recover Rs 1,70,813 plus miscellaneous expenses from him as electricity dues. He did not challenge the demand on merits. His counsel submitted that he was ready and willing to pay if granted an installment facility. The Court recorded that section 6.14 of the Electricity Supply Code, 2005 provides for that facility.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for recovery of electricity dues

HOLDING

Clause 6.14 of the Electricity Supply Code, 2005 provides an installment facility for electricity dues. The writ against a recovery certificate for Rs 1,70,813 plus miscellaneous expenses is disposed of by directing the consumer to deposit Rs 50,813 within one month; on that payment, recovery of the balance remains in abeyance if Rs 1,20,000 is paid in four equal installments of Rs 30,000 by 10 February, 10 April, 10 June and 10 August 2019, the last installment to include miscellaneous charges and any further accrual. Default in any installment automatically vacates the stay and permits the respondents to recover in accordance with law.

¶ 4-6

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer who did not contest electricity dues on merits, but sought time to pay, obtained a clause 6.14 installment schedule: part-deposit within one month, four later installments of the balance, recovery stayed while payments were kept, and automatic vacation of stay on default. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE AND THE UNDERLYING ELECTRICITY DUES

The Court proceeded on the petitioner's willingness to pay and granted a clause 6.14 installment schedule without examining the demand. ¶ 2-5